



May 28, 2025

Hon. Michelle L. Phillips
Secretary
New York Public Service Commission
3 Empire State Plaza
Albany, NY 12223-1350

RE: Case 22-E-0236: Proceeding to Establish Alternatives to Traditional Demand-Based Rate Structures for Commercial Electric Vehicle Charging

Comments of the Vehicle-Grid Integration Council (VGIC) on the Load Management Technology Incentive Program

Introduction

The Vehicle-Grid Integration Council (“VGIC”) is a 501(c)(6) membership-based advocacy group committed to advancing the role of electric vehicles (“EVs”) and vehicle-grid integration (“VGI”) through policy development, education, outreach, and research. VGIC supports the transition to decarbonized transportation and electric sectors by ensuring the value of flexible EV charging and discharging is recognized and compensated in support of a more reliable, affordable, and efficient electric grid. VGIC appreciates the opportunity to provide comments on the Joint Utilities’ Load Management Technology Incentive Program (“LMTIP”).

VGIC Supports the Continuation of LMTIP

Deploying load management technologies at EV charging sites is a critical strategy to advance New York’s transportation electrification goals while minimizing impacts to ratepayers. Specifically, EV load management technologies can reduce charging customers’ electric service requirements, which can help defer or avoid distribution system upgrades that might otherwise be required to energize the EV charging site. By incentivizing customers to elect solutions that reduce the cost to ratepayers and optimize the use of utility make-ready funding, New York can support a greater number of charging sites at a lower overall system cost. Using EV load management technologies to reduce utility infrastructure has also been shown to significantly accelerate site connection timelines by reducing the scope of service connection, in turn allowing New York to meet its overall decarbonization goals sooner. Tools that allow charging infrastructure to be available more quickly directly serves the fast-growing number of EVs on the

road and the increasing customer demand for local EV charging sites. VGIC appreciates the Commission and Joint Utilities' efforts in developing the nation's first large-scale program to directly incentivize the deployment of EV load management technologies. We strongly support the continuation of the LMTIP program and recommend one potential enhancement in the comments below.

LMTIP Technology Eligibility

There are many approaches – both hardware and software – to managing the demand and site connection requirements of charging sites. The current LMTIP guidelines detail four groups of eligible technologies: load management software, load management hardware, co-located energy storage, and integrated energy storage. Each of these load management technologies are capable of reliably balancing, curtailing, or deferring a customer's net EV charging demand on the electric grid. Diverse approaches are needed to deliver the same service to the grid and allow customers to choose the approach that best fits their needs. Allowing LMTIP to help offset a significant portion of the costs of adopting these technologies greatly improves the economic case for customers to install them. In turn, this benefits the customers installing the EV load management technologies as well as ratepayers in general.

While the existing LMTIP technology eligibility has been an important first step in supporting these critical technologies, VGIC recommends that additional technologies be deemed eligible in LMTIP moving forward. Firstly, we recommend that on-site generation be deemed eligible. This solution is growing in popularity for larger EV sites in capacity-constrained areas. For example, in the October 25, 2023 *Medium- and Heavy-Duty Electrification Actions, Challenges and Opportunities Technical Conference* hosted in NY PSC Case 23-E-0070, Prologis detailed its use of linear generator technology to support a 10 MW site in just 12 months, rather than the 2-3 years required to complete utility-side upgrades.¹ Customer-owned solar offers another such solution set. For example, a medium- and heavy-duty charging site on the West Coast uses solar and a stationary battery energy storage system on a 119-acre site to mitigate the utility-side system upgrades otherwise needed to energize the site.² VGIC believes temporary or permanent generation of this kind will be critical to energizing several sites in New York. As such, we urge the Commission to direct the Joint Utilities to add

¹ NY DPS Case 23-E-0070. Prologis Mobility. *10 MW in 12 months*. Slide 6. October 25, 2023. <https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId={90F5818B-0000-C492-BA6D-C9B69E6DD5B2}>

² WattEV, *WattEV opens world's largest solar-powered truck charging depot boasting megawatt charging, fourth station to open in one year*. May 6, 2024. <https://www.wattev.com/post/wattev-opens-world-s-largest-solar-powered-truck-charging-depot-fourth-station-to-open-in-one-year>

these solutions to the list of eligible technologies that may be considered for LMTIP incentives. As with all projects considered in the LMTIP program, we believe projects using these technology types should be evaluated to avoid double paying for the same technology, for example, solar systems that may receive other equipment deployment incentives.

As explained by the Joint Utilities in their 2023 filing proposing the LMTIP, the costs of some technologies can be ambiguous – such as when software-based load management costs are part of a software package that also includes other services, or when energy storage is integrated directly into the EVSE rather than a separate piece of equipment.³ This limitation may also introduce uncertainty for the site host and/or technology provider as to the amount of incentive they can expect to be eligible for under the LMTIP, affecting calculations for project economics. With this in mind, and considering VGIC’s above recommendation to include solar and other types of customer generation as eligible technologies in LMTIP, long-term program development efforts may benefit from consideration of alternative program designs. Given LMTIP has only been offered for a few months, VGIC advises against implementing any substantially difference program design at this time. However, we respectfully request the Commission, Joint Utilities, and relevant stakeholders convene in the next 12-18 months to discuss lessons learned regarding program design and consider changes to reduce administrative burden and *ad hoc* consideration of how LMTIP incentives stack with other program funds.

Lastly, VGIC notes that bidirectional charging equipment costs more than unidirectional charging equipment. This is true across all use cases, although the cost differences are particularly challenging in residential and light-duty vehicle contexts, where overall upfront costs are generally lower than in commercial and medium- and heavy-duty segments. In residential and light-duty sites the cost differential for bidirectional charging systems is therefore felt more by the customer or site developer. VGIC has detailed this dynamic in its past comments in this proceeding (Case 22-E-0236 re Demand Charge Alternatives), Case 18-E-0138 re light-duty make ready and managed charging, and Case 23-E-0070 re medium- and heavy-duty make ready). Here, we reiterate the need to provide incremental funding support for bidirectional charging systems above and beyond what is provided to unidirectional charging systems. This support is needed to promote a market transition toward bidirectional charging solutions, which offer increased benefit to both customers with the technology and ratepayers at large. Although the intent of LMTIP is to promote load flexibility in commercial charging sites, we recommend the Commission consider including bidirectional charging solutions as eligible for LMTIP, including in residential and light-duty vehicle contexts where the added costs of bidirectional charging persists as a barrier to unlocking the full grid benefits of EVs.

³ NY DPS Case 22-E-0236. *Joint Utilities’ Electric Vehicle Load Management Technology Incentive Program*. May 19, 2023. <https://documents.dps.ny.gov/public/Common/ViewDoc.aspx?DocRefId={C01E3588-0000-CC11-824F-591C19658923}>



Conclusion

VGIC appreciates the opportunity to provide these comments and looks forward to working with the Joint Utilities, the Commission, and other stakeholders to ensure the success of New York's transportation electrification efforts.

Respectfully submitted,

A handwritten signature in black ink, which appears to read "Zach Woogen", is positioned above the printed name.

Zach Woogen

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